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TENTATIVE RULING

Cross-Defendants ARG RE Enterprises, LLC and Ashvin Garlapati's Demurrer to Cross-Complaint of Opulence Escrow, Inc. and Lindsay Riddle is SUSTAINED with thirty (30) days leave to amend as to all causes of action.

Cross-Defendants ARG RE Enterprises, LLC and Ashvin Garlapati's Motion to Strike Portions of the Cross-Complaint of Opulence Escrow, Inc. and Lindsay Riddle is DENIED as MOOT.

Defendants/Cross-Complainants Opulence Escrow, Inc. and Lindsay Riddle may amend their cross-complaint only as authorized by the Court's order and may not amend the complaint to add a new party or cause of action without having obtained permission to do so. (Harris v. Wachovia Mortgage, FSB (2010) 185 Cal.App.4th 1018, 1023.)

Cross-Defendants ARG RE Enterprises, LLC and Ashvin Garlapati to give notice.

First Cause of Action: Total Equitable Indemnity

"Equitable indemnity, which requires no contractual relationship, is premised on a joint legal obligation to another for damages; it is subject to allocation of fault principles and comparative equitable apportionment of loss." (C.W. Howe Partners Inc. v. Mooradian (2019) 43 Cal.App.5th 688, 700, quotation marks omitted.) "The elements of a cause of action for equitable indemnity are (1) a showing of fault on the part of the indemnitor and (2) resulting damages to the indemnitee for which the indemnitor is equitably responsible." (Ibid., quotation marks, brackets, and ellipses omitted.)

In the cross-complaint, Defendants/Cross-Complainants Opulence Escrow, Inc. and Lindsay Riddle ("Cross-Complainants") allege that Cross-Defendant Ashvin Garlapati is the controlling members of Cross-Defendant ARG RE Enterprises, LLC ("ARG") (collectively "Cross-Defendants"), and ARG was the entity Garlapati utilized to purchase the subject property at 1047 Corsica Drive in Pacific Palisades. (Cross-Compl. ¶¶ 2-3.) Cross-Complainants allege that an action was filed against them by Plaintiff SRED V, L.P. ("Plaintiff") (Cross-Compl. ¶ 6), and as to the first cause of action for equitable indemnification, Cross-Complainants allege that the damages and claims made by Plaintiff are the result of Cross-Defendants' acts, and Cross-Complainants and Cross-Defendants are not joint tortfeasors (Cross-Compl. ¶ 8), such that Cross-Complainants are entitled to recovery of attorney fees in defending against Plaintiff's claims and in prosecuting this cross-complaint (Cross-Compl. ¶ 9).

Cross-Defendants demur to this claim on the ground that Cross-Complainants have failed to allege joint liability for the same injury. In the opposition, Cross-Complainants refer to facts that are not included anywhere in the cross-complaint. (See

Opp'n, pp. 5-7.) The Court will not consider facts not included in the pleading, Cross-Complainants have not asked the Court to take judicial notice of the complaint, and even if they had, it is not Cross-Defendants' or the Court's responsibility to determine the basis of alleged liability. Moreover, equitable indemnity is, again, premised on a joint legal obligation, and Cross-Complainants have expressly stated there is no joint liability, confusing the theory of liability here. Accordingly, Cross-Defendants' demurrer to the first cause of action is SUSTAINED with thirty (30) days leave to amend.

Second Cause of Action: Apportionment of Fault

Apportionment of fault "is a form of equitable indemnity in which a defendant may reduce his or her damages by establishing others are also at fault for the plaintiff's injuries." (Wilson v. Ritto (2003) 105 Cal.App.4th 361, 369.)

Cross-Complainants allege no new or different facts in the second cause of action, and apportionment of fault is merely a form of equitable indemnity. For that reason, Cross-Defendants' demurrer to the second cause of action is also SUSTAINED with thirty (30) days leave to amend.

Third Cause of Action: Declaratory Relief

"To qualify for declaratory relief, a party would have to demonstrate its action presented two essential elements: (1) a proper subject of declaratory relief, and (2) an actual controversy involving justiciable questions relating to the party's rights or obligations." (Jolley v. Chase Home Finance, LLC (2013) 213 Cal.App.4th 872, 909, quotation marks and brackets omitted.)

A cause of action for declaratory relief should not be used as a second cause of action for the determination of identical issues raised in another cause of action. (General of America Insurance Co. v. Lilly (1968) 258 Cal.App.2d 465, 470.) "The availability of another form of relief that is adequate will usually justify refusal to grant declaratory relief" (California Insurance Guarantee Association v. Superior Court (1991) 231 Cal.App.3d 1617, 1624), and a duplicative cause of action is subject to demurrer (Palm Springs Villas II Homeowners Association, Inc. v. Parth (2016) 248 Cal.App.4th 268, 290).

In the third cause of action, Cross-Complainants seek a judicial determination that Cross-Defendants are required to indemnify and hold Cross-Complainants harmless in this action. (Cross-Compl. ¶ 15.) This claim, too, suffers from the same deficiencies identified as to the claim for indemnity, and it is not clear how this claim differs in any way from the first cause of action. Thus, Cross-Defendants' demurrer to the third cause of action is also SUSTAINED with thirty (30) days leave to amend.

Motion to Strike

Given the Court's ruling on demurrer, Cross-Defendants' motion to strike is DENIED as MOOT.